

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Post-Rehearing Mandate

Issued July 13, 2026

The judgment of this Court entered June 18, 2026, is placed into effect by issuance of this mandate following denial of the City of Norvale's timely petition for panel rehearing and rehearing en banc on July 6, 2026. Certified copies of the opinion, judgment, and rehearing order accompany this instrument.

The Court exercised interlocutory jurisdiction under 28 U.S.C. § 1292(a)(1) and denied the City's request to dismiss the recurring-events controversy as moot. It affirmed the determination that the Piedmont Booksellers Guild established entitlement to preliminary protection on the record presented. It remanded solely for entry of a superseding preliminary-injunction order that describes the restrained conduct with the specificity required by Federal Rule of Civil Procedure 65(d) and makes an express, record-supported determination concerning security under Rule 65(c).

The January 23 preliminary injunction remains effective until the district court enters that superseding compliant order. This mandate does not dissolve existing protection, reopen the affirmance of interim entitlement, prescribe a bond amount, or dictate the exact language of the corrected command. The unresolved complaint remains before the district court, which may manage the merits and consider materially changed circumstances consistently with the opinion.

The Clerk certifies that the rehearing petition was filed within the applicable fourteen-day period, was denied on July 6, and no eligible judge requested an en banc poll. Seven days have passed since denial. No mandate-stay motion or other order withholding issuance is pending, and the mandate was released by order entered July 13, 2026.

The United States District Court for the District of South Carolina shall conduct further proceedings in case No. SYN-DSC-26-CV-0107 consistent with the opinion. Its corrective work should identify the acts restrained in operative terms and explain the security determination. The district court retains authority over discovery, scheduling, later evidence, and the ultimate claims, none of which were finally adjudicated in this interlocutory appeal.

Each side shall bear its own appellate costs. Counsel shall preserve the permit record and comply with district-court directions on remand. Any later appeal from a final decision would require its own jurisdictional basis and notice; this mandate addresses only the January 23 preliminary order and the limited correction directed by the June 18 judgment.

The Clerk issues this mandate on July 13, 2026. Counsel for Norvale and the Guild shall receive it through the electronic filing system, and the district clerk shall receive the certified materials for filing in the originating civil action.